

ABLAPL No.1743 of 2020

02. 19.02.2020 Heard learned counsel for the petitioners and learned Addl. Standing Counsel.

This application under Section 438 Cr.P.C. has been made on 04.02.2020 by the petitioners namely Tutuna Sahoo and Champi @ Sumitra Sahoo apprehending arrest in connection with Jajpur Sadar P.S. Case No.13 of 2020, corresponding to C.T. Case No.119 of 2020 of the Court of learned S.D.J.M., Jajpur for offence under Sections 341, 323, 294 and 506 read with section 34 of the Indian Penal Code.

Having heard learned counsel for the petitioners, considering the nature of allegation, there being no criminal antecedent and the fact that petitioners are permanent resident of village Rudrapur, P.S.-Jajpur Sadar, District - Jajpur which precludes any reasonable apprehension of their fleeing from justice, I am inclined to extend the privilege of Section 438 Cr.P.C. in their favour.

Hence, it is ordered that in the event of arrest of above named petitioners, in connection with above noted case, they shall be released on bail by executing bail bond of Rs.20,000/-(Rupees twenty thousand) with one surety each for the like amount to the satisfaction of the Arresting Officer, subject to the conditions that (1) they shall appear before the I.O. as and when to be directed by him for the purpose of investigation; and (2) shall not directly or indirectly make any inducement, threat or

promise to any person acquainted with the facts of the case.

Violation of any of the above conditions shall entail cancellation of bail without reference to this Court.

The ABLAPL is accordingly disposed of.

Urgent certified copy of this order be granted as per rules.

.....
Dr. A. K. Mishra, J.

mkp